

Amendment No. 2 to HB1785

Johnson
Signature of Sponsor

AMEND Senate Bill No. 1822

House Bill No. 1785*

by inserting the following as new sections immediately preceding the effective date section and renumbering the effective date section accordingly:

SECTION __. Tennessee Code Annotated, Title 49, Chapter 6, Part 26, is amended by adding the following as a new section:

(a) If a participating school that serves students in any of the grades six through twelve (6-12) is a member of an organization or an association that regulates interscholastic athletic competition, then the participating school must permit participation in interscholastic athletics offered at the participating school by a middle or high school student who:

(1) Is enrolled in a public school that is not a member of the organization or association and that serves fewer than two hundred (200) students in grades six through eight (6-8) or fewer than two hundred (200) students in grades nine through twelve (9-12):

(2) Satisfies the eligibility requirements established by the organization or association; and

(3) Resides within the county in which the participating school is located.

(b) If a participating school serves students in any of the grades six through twelve (6-12) and offers its students the opportunity to participate in interscholastic athletic competition at the participating school without the school being a member of an organization or an association that regulates interscholastic athletic competition, then the participating school must permit participation in interscholastic athletics at the

participating middle or high school by a student who is enrolled in a public school described in subdivision (a)(1) and who meets the requirements of subdivision (a)(3). This subsection (b) does not prevent or interfere with the application and enforcement of any eligibility requirements of an organization or association that regulates interscholastic athletic competition as set forth in subsection (a) if the participating school at which the student seeks to participate in interscholastic athletics pursuant to this section is a member of such an organization or association.

(c) This section does not guarantee that a middle or high school student who is enrolled in a public school described in subdivision (a)(1) and who is trying out for an interscholastic athletics team at a participating school will make the team or supplant the authority of any coaches or other school officials in deciding who makes the team. This section is only intended to guarantee that the public school student is not prohibited from trying out for an interscholastic athletics team at the participating school if the student is otherwise eligible to participate under the rules of the organization or association, solely by reason of the student's status as a public school student.

(d) This section does not limit or supplant the authority of any organization or association to determine eligibility and to establish, modify, and enforce its rules and eligibility requirements, including those applicable to public school students.

SECTION __. Tennessee Code Annotated, Title 49, Chapter 6, Part 35, is amended by adding the following as a new section:

(a) If a private school that enrolls recipients and serves students in any of the grades six through twelve (6-12) is a member of an organization or an association that regulates interscholastic athletic competition, then the private school must permit participation in interscholastic athletics offered at the private school by a middle or high school student who:

(1) Is enrolled in a public school that is not a member of the organization or association and that serves fewer than two hundred (200) students in grades

six through eight (6-8) or fewer than two hundred (200) students in grades nine through twelve (9-12):

(2) Satisfies the eligibility requirements established by the organization or association; and

(3) Resides within the county in which the private school is located.

(b) If a private school enrolls recipients in any of the grades six through twelve (6-12) and offers its students the opportunity to participate in interscholastic athletic competition at the private school without the school being a member of an organization or an association that regulates interscholastic athletic competition, then the private school must permit participation in interscholastic athletics at the private middle or high school by a student who is enrolled in a public school described in subdivision (a)(1) and who meets the requirements of subdivision (a)(3). This subsection (b) does not prevent or interfere with the application and enforcement of any eligibility requirements of an organization or association that regulates interscholastic athletic competition as set forth in subsection (a) if the private school at which the student seeks to participate in interscholastic athletics pursuant to this section is a member of such an organization or association.

(c) This section does not guarantee that a middle or high school student who is enrolled in a public school described in subdivision (a)(1) and who is trying out for an interscholastic athletics team at a private school will make the team or supplant the authority of any coaches or other school officials in deciding who makes the team. This section is only intended to guarantee that the public school student is not prohibited from trying out for an interscholastic athletics team at the private school if the student is otherwise eligible to participate under the rules of the organization or association, solely by reason of the student's status as a public school student.

(d) This section does not limit or supplant the authority of any organization or association to determine eligibility and to establish, modify, and enforce its rules and eligibility requirements, including those applicable to public school students.

SECTION __. Tennessee Code Annotated, Title 49, Chapter 10, Part 14, is amended by adding the following as a new section:

(a) If a participating school that serves students in any of the grades six through twelve (6-12) is a member of an organization or an association that regulates interscholastic athletic competition, then the participating school must permit participation in interscholastic athletics offered at the participating school by a middle or high school student who:

(1) Is enrolled in a public school that is not a member of the organization or association and that serves fewer than two hundred (200) students in grades six through eight (6-8) or fewer than two hundred (200) students in grades nine through twelve (9-12):

(2) Satisfies the eligibility requirements established by the organization or association; and

(3) Resides within the county in which the participating school is located.

(b) If a participating school serves students in any of the grades six through twelve (6-12) and offers its students the opportunity to participate in interscholastic athletic competition at the participating school without the school being a member of an organization or an association that regulates interscholastic athletic competition, then the participating school must permit participation in interscholastic athletics at the participating middle or high school by a student who is enrolled in a public school described in subdivision (a)(1) and who meets the requirements of subdivision (a)(3). This subsection (b) does not prevent or interfere with the application and enforcement of any eligibility requirements of an organization or association that regulates interscholastic athletic competition as set forth in subsection (a) if the participating

school at which the student seeks to participate in interscholastic athletics pursuant to this section is a member of such an organization or association.

(c) This section does not guarantee that a middle or high school student who is enrolled in a public school described in subdivision (a)(1) and who is trying out for an interscholastic athletics team at a participating school will make the team or supplant the authority of any coaches or other school officials in deciding who makes the team. This section is only intended to guarantee that the public school student is not prohibited from trying out for an interscholastic athletics team at the participating school if the student is otherwise eligible to participate under the rules of the organization or association, solely by reason of the student's status as a public school student.

(d) This section does not limit or supplant the authority of any organization or association to determine eligibility and to establish, modify, and enforce its rules and eligibility requirements, including those applicable to public school students.